

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

20230930-DK-BUTTERFLY-1, INC.

FMC Docket No. 25-01

Complainant,

vs.

BAL CONTAINER LINE CO., LIMITED,

Respondent

DECLARATION OF BRYCE M. CULLINANE

I, Bryce M. Cullinane, declare as follows:

1. I am an attorney duly admitted to practice before this Tribunal. I am employed by Theodora Oringer PC, attorneys of record for Bal Container Line Co., Limited (“Bal”), Respondent in this matter. If called as a witness, I could and would competently testify to all the facts herein based on my personal knowledge, except where stated upon information and belief.

2. I have been in contact with counsel for 20230930-DK-BUTTERFLY-1, INC. (“BBBY”) for approximately one year regarding detention or demurrage fees BBBY alleged were improperly assessed against it by Bal.

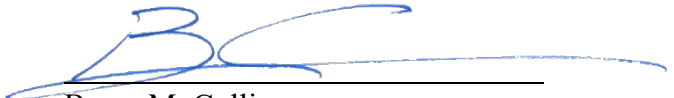
3. On December 12, 2024, I communicated to Zachery Morris, counsel for BBBY, that “Bal will engage in good faith regarding any containers where BBB[Y] can prove that demurrage was charged while the container was not available for pickup, or regarding any containers where detention was charged but the terminal indicated that no appointments were available for the return.” To date, BBBY has not provided this information. A true and accurate copy of my email to Zachery Morris is attached hereto as **Exhibit 1**.

4. During meet and confer discussions with Zachery Morris, I indicated that Bal generally does not communicate directly with shippers, including BBY, and that manual searches performed by Liu Qingzhi, Cathy Sun, and Parker Zhu for “Bed Bath”, BBB, BBY, Bedbath, or Bedbath&beyond within their respective Bal emails had not produced emails containing any of the search terms.

5. On April 22, 2024, I sent an email to Zachery Morris, where I stated in part: “As mentioned on the phone today, I have no intention of jamming you up. If you would like to stipulate to a short extension on the deadline to bring your motion to compel, let me know.” A true and accurate copy of this email is attached hereto as **Exhibit 2**.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed this 29th day of April, 2025, at Costa Mesa, California.



Bryce M. Cullinane

EXHIBIT 1

From: [Cullinane, Bryce](#)
To: [Zac Morris](#); [Mohini Priya](#)
Cc: [Lee-Sanchez, Gabriel](#); [Wade, Tammy](#)
Subject: Bal Container Line Discussion [KYL No. 8908-2]
Date: Thursday, December 12, 2024 10:52:44 AM

Zac and Mohini –

Thank you for your time this morning.

Please let us know a time next week that we can get on a call with you and your analyst regarding the following questions:

1. Regarding the most recent excel sheet, would you explain the significance of columns R, S and T, by using as an example Row #1? We are trying to understand what these dates represent?
2. Regarding the most recent excel sheet, would you explain the significance of columns X, Y, Z, AA, AB, and AC, by using as an example Row #1? We are trying to understand what these dates represent?
3. Regarding the most recent excel sheet, would you explain the significance of columns AU through BA, by using as an example Row #1? We are trying to understand what these dates represent?
4. In the spreadsheet dated 3-28-2023, what do the columns S and T represent?
5. In the spreadsheet dated 3-28-2023, what do the columns V through X represent?

As I stated on our call, Bal will engage in good faith regarding any containers where BBB can prove that demurrage was charged while the container was not available for pickup, or regarding any containers where detention was charged but the terminal indicated that no appointments were available for the return.

As an aside, I cannot recall if the issue of whether BBB has received assignments from the drayage providers were obtained? Can you please remind me.

Finally, we will get back to you next week regarding tolling. I will, at the very least, recommend 30 days of tolling to Bal Container Line, so that we can have time for this discussion.

Best regards,

Bryce

Bryce M. Cullinane, Esq.
Shareholder
Keesal, Young & Logan
The Waterfront at Catalina Landing
310 Golden Shore, Suite 400
Long Beach, CA 90802

562.436.2000 (office) | 562.436.7416 (fax)

EXHIBIT 2

From: Bryce M. Cullinane

Sent: Monday, April 21, 2025 8:59 PM

To: Zachery Morris <zmorris@huthreynolds.com>

Cc: Ileen Osorio <iosorio@tocounsel.com>; Mohini Priya <Mpriya@huthreynolds.com>; Heewan Noh <hnoh@huthreynolds.com>; Karl Huth <huth@huthreynolds.com>; Matthew Reynolds <reynolds@huthreynolds.com>; Gregory Crapanzano <gcrapanzano@huthreynolds.com>

Subject: RE: BBBY v. BAL - draft ESI stipulation and search terms

Zac –

I am awaiting signatures from Bal on the amended responses to the RFPs and Rogs. The amended responses provide further information, make further concessions, and are more clear in Bal's position.

I hope to have the verifications this evening, or tomorrow morning.

As mentioned on the phone today, I have no intention of jamming you up. If you would like to stipulate to a short extension on the deadline to bring your motion to compel, let me know.

Bryce

From: Bryce M. Cullinane <bcullinane@tocounsel.com>

Sent: Sunday, April 20, 2025 6:14 PM

To: Zachery Morris <zmorris@huthreynolds.com>

Cc: Ileen Osorio <iosorio@tocounsel.com>; Mohini Priya <Mpriya@huthreynolds.com>; Heewan Noh <hnoh@huthreynolds.com>; Karl Huth <huth@huthreynolds.com>; Matthew Reynolds <reynolds@huthreynolds.com>; Gregory Crapanzano <gcrapanzano@huthreynolds.com>

Subject: Re: BBBY v. BAL - draft ESI stipulation and search terms

Good evening, Zac. Let me know what time you are available to speak tomorrow? In particular, I would like to discuss those RFI's that your client may intend to move to compel upon, as well as BAL's forthcoming amended responses to the RFPs.

I am available at Noon pacific or 3pm pacific.

Thank you,

Bryce

From: Bryce M. Cullinane <bcullinane@tocounsel.com>

Date: Friday, April 18, 2025 at 5:39 PM

To: Zachery Morris <zmorris@huthreynolds.com>

Cc: Ileen Osorio <iosorio@tocounsel.com>, Mohini Priya <Mpriya@huthreynolds.com>, Heewan Noh <hnoh@huthreynolds.com>, Karl Huth <huth@huthreynolds.com>, Matthew Reynolds <reynolds@huthreynolds.com>, Gregory Crapanzano

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 29th day of April, 2025, a true and correct copy of the foregoing **DECLARATION OF BRYCE M. CULLINANE** was served via electronic mail on:

Karl C. Huth

huth@huthreynolds.com

Matthew J. Reynolds

reynolds@huthreynolds.com

J. Zachery Morris

zmorris@huthreynolds.com

Mohini P.B. Rarrick

mpriya@huthreynolds.com



Ileen Osorio